

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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JUNE CAMPBELL, CHERELL TILLMAN, and DAWN
TILLMAN,

Plaintiffs,

COMPLAINT

JURY TRIAL DEMANDED

-against-

15-cv-01786

THE CITY OF NEW YORK, a municipal corporation;
SGT. NEIL CASEY (Shield No. 4332), in his individual
and official capacities; DET. ANTHONY DESPOSITO
(Tax ID 940085), in his individual and official capacities;
and SGT. MATTHEW WOODS (Shield No.754), in his
individual and official capacities,

Defendants.

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Plaintiffs June Campbell, Cherell Tillman, and Dawn Tillman, by their attorney, Steven
E. Lynch, allege for their complaint against the defendants as follows:

PRELIMINARY STATEMENT

1. Plaintiffs bring this action for compensatory damages, punitive damages,
and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of their
civil rights guaranteed by the Constitution of the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 and the
Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331 and 1343.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391(b)(2), in that this is the District in which the events or omissions underlying the claim arose.

JURY DEMAND

5. Plaintiffs respectfully demand a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. The plaintiffs are African-American females and were at all relevant times citizens of the City and State of New York.

7. Defendant, the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, the City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

9. At all times hereinafter mentioned, the individually named defendants: Sergeant Neil Casey; Detective Anthony Desposito; and Sergeant Matthew Woods were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official

rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant City of New York.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant City of New York.

FACTS

13. On or about May 31, 2012, at approximately 3:30 p.m., plaintiff Dawn Tillman telephoned plaintiff June Campbell to say that police officers stopped Maurice Fields, plaintiff Campbell's grandson, in front of 132 Hull Street, Brooklyn, New York.

14. Plaintiffs June Campbell, Cherell Tillman, and Dawn Tillman along with Maurice Fields resided at 132 Hull Street at the time of the incident. 132 Hull Street consists of three floors of living space and a basement.

15. After the telephone call, plaintiff Campbell, who was speaking with an insurance agent in the first floor of 132 Hull Street, saw a police officer, believed to be Police Officer Anthony Esposito, attempting to open the front door to the first floor.

16. Plaintiff Campbell opened the front door to the first floor, exited 132 Hull Street, and asked a police officer, believed to be Police Officer Neil Casey, "What's wrong?"

17. Police Officer Casey told plaintiff Campbell that "someone ran into the house and hid a gun."

18. Plaintiff Campbell responded to Police Officer Casey that no one entered the first floor of 132 Hull Street during her hour-long meeting with the insurance agent.

19. Police Officer Casey subsequently arrested plaintiff Campbell, a seventy-five (75)

year old retiree, who had never previously been arrested. Plaintiff Campbell was handcuffed to a bench in the 73rd Precinct, 1470 East New York Avenue, Brooklyn, New York from approximately 4 p.m. on May 31, 2012 to approximately 3 a.m. on June 1, 2012. Plaintiff Campbell's arrest was voided prior to the initiation of a criminal action against her.

20. Plaintiff Cherell Tillman saw a police officer, believed to be Police Officer Neil Casey, detaining Maurice Fields in front of 132 Hull Street.

21. Plaintiff Cherell Tillman inquired from a third floor window of 132 Hull Street why Police Officer Casey detained Maurice Fields.

22. Police Officer Casey told Plaintiff Cherell Tillman that he will tell her what's going on after she comes downstairs.

23. Plaintiff Cherell Tillman exited 132 Hull Street. Police Officer Casey told her that someone ran into 132 Hull Street with a gun.

24. Maurice Fields and Cherell Tillman informed Police Officer Casey that no one entered 132 Hull Street.

25. Police Officer Casey denied plaintiff Cherell Tillman reentry into 132 Hull Street.

26. Plaintiff Cherell Tillman telephoned her mother, plaintiff Dawn Tillman.

27. Plaintiff Dawn Tillman walked to a third floor window of 132 Hull Street to see what was transpiring.

28. Police Officer Casey asked plaintiff Dawn Tillman to come downstairs.

29. Plaintiff Dawn Tillman exited 132 Hull Street

30. Police Officer Casey arrested plaintiffs Cherell Tillman and Dawn Tillman, who were transported to the 73rd Precinct.

31. Subsequent to her arrest, plaintiff Dawn Tillman told Police Officer Casey that

she was diabetic, had not eaten any food, and did not have her medicine. At no point did Police Officer Casey provide plaintiff Dawn Tillman with any food or medical treatment.

32. At approximately 5:00 a.m. on June 1, 2012, while detained in Central Bookings, plaintiff Dawn Tillman told a police officer that she was about to pass out. Shortly thereafter, plaintiff Dawn Tillman lost consciousness and was transported to Long Island College Hospital, where she was treated and released to police custody. Plaintiff Cherell Tillman was present when her mother, plaintiff Dawn Tillman, lost consciousness and feared for her mother's health and safety.

33. Plaintiffs Dawn Tillman and Cherell Tillman along with Maurice Fields were charged with Penal Law section 265.01(1) criminal possession of a weapon in the fourth degree and Administrative Code Section 10-131(i)(3) possession of pistol ammunition.

34. On or about May 29, 2014, the charges against plaintiffs Dawn Tillman and Cherrell Tillman were adjourned in contemplation of dismissal.

FIRST CAUSE OF ACTION

*42 U.S.C. § 1983 - Fourth and Fourteenth Amendment Violations
On Behalf of all Plaintiffs for Unreasonable Seizure and False Arrest
(Against the Individual Officer Defendants)*

35. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

36. As a result of defendants' aforementioned conduct, the plaintiffs were subjected to illegal, improper, and false arrests by the Individual Officer Defendants. The plaintiffs were taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated. In the above-mentioned actions, defendants acted intentionally, willfully, with malice, and without probable cause, privilege or consent.

37. Plaintiffs were conscious of their confinement.

38. As a result of the foregoing, plaintiffs' liberty was restricted in filthy and degrading conditions for an extended period of time, plaintiffs were put in fear for their safety, were humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

39. By virtue of the foregoing, the defendants deprived the plaintiffs of their Fourth Amendment rights under the United States Constitution to be free from unreasonable seizures of his person and are liable to plaintiffs under 42 U.S.C. §1983

SECOND CAUSE OF ACTION

*42 U.S.C. § 1983 -Fourth and Fourteenth Amendment Violations
On Behalf of all Plaintiffs for the Failure to Intervene
(Against the Individual Officer Defendants)*

40. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

41. The defendants who were present but did not actively participate in the unlawful actions alleged herein and who observed and had an opportunity to prevent such conduct and failed to intervene.

42. By virtue of the foregoing, the defendants who failed to intervene deprived the plaintiffs of their Fourth Amendment rights under the United States Constitution to be free from unreasonable searches of their person and are liable to plaintiffs under 42 U.S.C. §1983.

THIRD CAUSE OF ACTION

*42 U.S.C. § 1983-Fifth and Fourteenth Amendment Violations
On Behalf of Cherell and Dawn Tillman for Fabrication of Evidence
(Against the Individual Officer Defendants)*

43. Plaintiffs Cherell and Dawn Tillman repeat, reiterate, and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

44. The Individual Officer Defendants create false evidence against plaintiffs Cherell and Dawn Tillman and drafted or signed sworn criminal complaints and false police reports.

45. The Individual Officer Defendants forwarded to prosecutors fabricated and false evidence that was likely to influence a jury's decision.

46. The Individual Officer Defendants knowingly and intentionally provided false evidence against plaintiffs Cherell Tillman and Dawn Tillman in legal proceedings.

47. By virtue of the foregoing, the Individual Officer Defendants deprived the plaintiffs Cherell Tillman and Dawn Tillman of their Fifth and Fourteenth Amendment rights under the United States Constitution to due process and to a fair trial and are liable to plaintiffs under 42 U.S.C. §1983.

FOURTH CAUSE OF ACTION

Municipal Liability (Against Defendant City)

48. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

49. The City's continuing failure to deter police misconduct has led to ever increasing numbers of lawsuits for repeated misconduct by the same officers, same units, and same precincts. In the fiscal year of 2012, there were 2,004 tort cases commenced against the New York City Police Department, up from 1,425 tort cases commenced for the fiscal year of 2008.¹ The City of New York has paid at least \$80 million for torts against the New York City Police Department since the fiscal year of 2008, peaking in fiscal year of 2009 when it paid out more

¹ Fiscal 2013 Preliminary Mayor's Management Report for the New York City Police Department, available at www.nyc.gov/html/ops/downloads/pdf/mmr0912/nypd.pdf, see page 5, last visited on January 24, 2014.

than \$117 million.¹ In the past ten years, the City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.²

50. The widely held assumption is that civil rights lawsuits deter police misconduct. “The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails.” Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v. Phipps, 435 U.S. 247, 254-257, (1978). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” See Hudson v. Michigan 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

51. However, the City of New York has isolated NYPD officers like Police Officer Casey, Police Officer Desposito, and Police Officer Woods from accountability for civil rights lawsuits by indemnifying officers who violate the constitutional rights of citizens, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, the NYPD or its officers. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was a “a total disconnect” between the settlements of even substantial civil claims and police department action against

² “NYPD gives quite the payday; AP report reveals police have dolled out \$1B to resolve lawsuits,” by Associated Press Writers Colleen Long and Jennifer Peltz via Daily News wire Report, <http://www.nydailynews.com/new-york/nypd-payday-ap-report-reveals-police-dolled-1b-resolve-lawsuits-article-1.189671>, October 15, 2010 last visited on January 27, 2014.

officers.³ This “total disconnect” between officers’ liability and NYPD discipline, results in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests or officers who have incurred large sums of civil rights liability.

52. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately responsible for New York City civil rights lawsuits.

53. Nevertheless, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City’s deliberate indifference towards the contents of civil rights litigation, individual officers repeatedly named in lawsuits, incidents repeatedly occurring in the same division, and patterns of misconduct that arise in civil rights litigation has caused the constitutional violations of excessive force and false arrest suffered by plaintiffs.

54. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even

³ Bob Hennelly’s WNYC report, “Amid City Budget Crisis, New Scrutiny on Millions in NYPD Settlements” from June 8, 2011: <http://www.wnyc.org/articles/its-free-country/2011/jun/08/amid-city-budget-grappling-new-scrutiny-millions-nypd-settlements/>, last visited on January 27, 2014.

occasional judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

55. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors and in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged." See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.) (Weinstein, J.).

56. In Floyd v. City of New York, 08-cv-01034-SAS-HBP, Judge Scheindlin found that the City acted with "deliberate indifference toward the NYPD's practice of making unconstitutional stops and conducting unconstitutional frisks" and adopted "a policy of indirect racial profiling by targeting racially defined groups for stops based on local crime suspect data." (Opinion and Order, dated August 12, 2013, P.13).

57. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiffs' civil rights, without fear of reprisal.

58. Plaintiffs have been damaged as a result of the deliberate indifference of the Defendant City.

59. As a result of the foregoing, plaintiffs June Campbell, Cherell Tillman, and Dawn Tillman are entitled to compensatory damages in an amount to be determined by a jury and are further entitled to punitive damages against the individual defendants in an amount to be determined by a jury.

WHEREFORE, plaintiffs demand a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. §1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

Dated: New York, New York
April 2, 2015

By: Steven E. Lynch
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